State of Tennessee

SENATE JOINT RESOLUTION NO. 25

By Senators Johnson, Rose, Stevens, Powers, Reeves

and

Mr. Speaker Sexton; Representatives Howell, Capley, Lamberth, Powers, Atchley, McCalmon, Hardaway, Davis, Cepicky, Gillespie, Carringer, Littleton, Rudder, Haston, Williams, Russell, Eldridge, Zachary, Helton-Haynes, White, Alexander, Tim Hicks, Hale, Slater, Kumar, Burkhart, Vital, Raper, Parkinson

A RESOLUTION to propose an amendment to Article I, Section 15 of the Constitution of Tennessee, relative to bail.

WHEREAS, Senate Joint Resolution No. 919 of the One Hundred Thirteenth General Assembly, which proposed amendment of Article I, Section 15 of the Constitution of Tennessee, relative to bail, was considered and agreed to by a majority of all the members elected to each of the two houses, as shown by the yeas and nays entered on their journals; and

WHEREAS, on April 23, 2024, such resolution proposing such amendment was published in compliance with Article XI, Section 3 of the Constitution of Tennessee; now, therefore,

BE IT RESOLVED BY THE SENATE OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE HOUSE OF REPRESENTATIVES CONCURRING, that a two-thirds majority of all the members elected to each house concurring, as shown by the yeas and nays entered on their journals, that it is proposed that Article I, Section 15 of the Constitution of Tennessee be amended by deleting the following:

> That all prisoners shall be bailable by sufficient sureties, unless for capital offences, when the proof is evident, or the presumption great. And the privilege of the writ of Habeas Corpus shall not be suspended, unless when in case of rebellion or invasion, the General Assembly shall declare the public safety requires it.

and substituting instead the following:

> (a) All prisoners shall be bailable by sufficient sureties unless for the following when the proof is evident or the presumption great:
>
> (1) A capital offense;
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> (2) An act of terrorism;
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> (3) Second degree murder;
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> (4) Aggravated rape of a child;
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> (5) Aggravated rape;
>
> (6) Grave torture; and
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> (7) Any other offense for which, as of November 3, 2026, a defendant, if convicted, could not be released prior to the expiration of at least eighty-five percent of the entire sentence imposed.
>
> (b) In any case in which bail for an offense listed in subsection (a) is granted or denied before conviction, the judge or magistrate shall place in the record the judge's or magistrate's reasons for granting or denying bail.

(c) The privilege of the writ of Habeas Corpus shall not be suspended, unless when in case of rebellion or invasion, the General Assembly shall declare the public safety requires it.

BE IT FURTHER RESOLVED, that in accordance with Article XI, Section 3 of the Constitution of Tennessee, the foregoing proposed amendment shall be submitted to the people at the next general election in which a governor is to be chosen, the same being the 2026 November general election, and the Secretary of State is directed to place such proposed amendment on the ballot for that election.

BE IT FURTHER RESOLVED, that the Clerk of the Senate is directed to deliver copies of this resolution to the Secretary of State, with this final resolving clause being deleted from such copies.

SENATE JOINT RESOLUTION NO. 25

ADOPTED: April 21, 2025

RANDY McNALLY
SPEAKER OF THE SENATE

CAMERON SEXTON, *SPEAKER*
HOUSE OF REPRESENTATIVES

TENNESSEE SENATE

RUSSELL A. HUMPHREY
CHIEF CLERK

RANDY MCNALLY
LT. GOVERNOR
SPEAKER OF THE SENATE

May 8, 2025

The Honorable Tre Hargett
Secretary of State
First Floor, State Capitol
600 Dr. Martin Luther King, Jr. Blvd.
Nashville, TN 37243

Dear Secretary Hargett:

Enclosed is a copy of Senate Joint Resolution No. 25, a resolution to propose an amendment to Article I, Section 15 of the Constitution of Tennessee.

Senate Joint Resolution No. 25 was read by the Senate of the One Hundred Fourteenth General Assembly of the State of Tennessee for the first time on March 6, 2025, for the second time on March 10, 2025, and for the third and final time on March 13, 2025, and was adopted by the Senate by a two-thirds majority on March 17, 2025.

Senate Joint Resolution No. 25 was read by the House of Representatives of the One Hundred Fourteenth General Assembly of the State of Tennessee for the first time on April 16, 2025, for the second time on April 17, 2025, and for the third and final time on April 21, 2025, and was thereupon concurred in by the House of Representatives by a two-thirds majority.

Senate Joint Resolution No. 25 was signed by the Speaker of the Senate on April 29, 2025, and by the Speaker of the House of Representatives on April 30, 2025.

As directed in the Resolution, I am transmitting herewith a copy of Senate Joint Resolution No. 25 to you. With best wishes, I am,

Sincerely yours,

Russell A. Humphrey
Chief Clerk of the Senate

2ND FLOOR STATE CAPITOL • NASHVILLE, TN 37243-0001 • 615.741.2730
RUSSELL.HUMPHREY@CAPITOL.TN.GOV